



CHAPTER clxviii.

An Act to confer further powers on the Baker Street and Waterloo Railway Company. A.D. 1905.
[4th August 1905.]

WHEREAS the Baker Street and Waterloo Railway Company were incorporated by the Baker Street and Waterloo Railway Act 1893 and by that Act and subsequent Acts the Company have been authorised to construct the underground railways subways and works described or referred to in those Acts and portions of the said authorised works have been constructed and the Company are proceeding with the construction of the remainder of their undertaking: 56 Vict. c. iv.

And whereas it would be of public advantage that the Company should be empowered to construct the subways hereinafter described and works connected therewith:

And whereas by the Baker Street and Waterloo Railway Act 1899 provision was made amongst other things for the construction by the Company of a subway (therein called No. 2) in the parish of Saint Martin-in-the-Fields and by the same Act it was also provided (section 43 subsection (2)) that the Company should construct and maintain the Subway No. 2 in the parish of Saint Martin-in-the-Fields commencing at or near the eastern side of Charing Cross at a point about sixty feet east of the point shown on the deposited plans therein referred to as the commencement of the said subway and terminating on the foot pavement in front of the post-office at the junction of West Strand with Trafalgar Square: 62 & 63 Vict. c. cxcii.

And whereas the Company have proceeded by agreement with the Commissioners of Woods in whom the soil is vested and with the assent of the council of the city of Westminster to construct a subway now nearing completion between the point

[Ch. clxviii.] *Baker Street and Waterloo Railway* [5 EDW. 7.]
Act, 1905.

A.D. 1905. — described in the Act of 1899 as the termination of Subway No. 2 near the statue of Sir Henry Havelock and a point in front of the post office at the junction of West Strand with Trafalgar Square as required by the said section 43 subsection (2):

And whereas by the same Act it was also provided (section 43 subsection (5)) that so soon as the position of the proposed new road from the Mall in Saint James' Park to Trafalgar Square had been determined the Company should in agreement with the London County Council and the then vestry of Saint Martin-in-the-Fields make a connection between the subway authorised by the said Act and the western side of Charing Cross near the termination of the said new road:

And whereas it is expedient that the said subway works should be altered and that instead of the said Subway No. 2 authorised by the Act of 1899 and the subway required to be made pursuant to the said section 43 subsection (5) of that Act the subway should be made across Charing Cross in the manner hereinafter authorised and that the said Subway No. 2 should be abandoned and that the Company should be relieved from the obligation under the said subsection (5) and that the construction of Subway No. 1 hereinafter described should be authorised in substitution therefor:

63 & 64 Vict.
c. ccxxv. And whereas the Subway No. 4 by this Act authorised is designed to be in substitution for the Subway No. 2 authorised by the Baker Street and Waterloo Railway Act 1900 and it is expedient that the construction of the last-mentioned subway should be abandoned:

2 Edw. 7.
c. cclv.
59 & 60 Vict.
c. ccxxvii. And whereas it is expedient that the time limited by section 5 of the Baker Street and Waterloo Railway Act 1902 for the completion of the railways and works authorised by the Act of 1893 the Baker Street and Waterloo Railway Act 1896 and the Act of 1899 (except such portions of those railways and works as have been or are by this Act authorised to be abandoned) should be extended as hereinafter provided:

3 Edw. 7.
c. ccxvi.
63 & 64 Vict.
c. ccxxv. And whereas it is also expedient that the time limited by the Baker Street and Waterloo Railway (Extension of Time) Act 1903 for the compulsory purchase of lands for the purposes of the Baker Street and Waterloo Railway Act 1900 should be extended so far as relates to the lands referred to in the Second Schedule to this Act;

[5 EDW. 7.] *Baker Street and Waterloo Railway* [Ch. clxviii.]
Act, 1905.

And whereas it is expedient that the powers of the Company under the Act of 1896 the Act of 1899 and the Act of 1900 with reference to the payment of interest out of capital during the construction of the works by those Acts respectively authorised should be extended : A.D. 1905.

And whereas it is expedient that such other provisions as are in this Act contained with reference to the Company and their undertaking should be made :

And whereas plans and sections showing the lines and levels of the subways authorised by this Act and also a book of reference to the plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace of the county of London and are hereinafter referred to as the deposited plans sections and book of reference :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Baker Street and Waterloo Railway Act 1905 and the Baker Street and Waterloo Railway Acts 1893 to 1904 and this Act may for all purposes be cited together as the Baker Street and Waterloo Railway Acts 1893 to 1905. Short title.

2. The following Acts and parts of Acts are so far as applicable and except where expressly varied by this Act incorporated with and form part of this Act (that is to say) :— Incorporation of general Acts.

The Lands Clauses Acts :

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the following matters (namely):—

With respect to the construction of the railway and the works connected therewith ;

With respect to the provision to be made for affording access to the special Act by all parties interested :

[Ch. clxviii.] *Baker Street and Waterloo Railway* [5 EDW. 7.]
Act, 1905.

A.D. 1905.

Part I. (relating to the construction of a railway) and Part II. (relating to extension of time) of the Railways Clauses Act 1863.

Interpreta-
tion.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings :

“ The Company ” means the Baker Street and Waterloo Railway Company ;

“ The Act of 1893 ” means the Baker Street and Waterloo Railway Act 1893 ;

“ The Act of 1896 ” means the Baker Street and Waterloo Railway Act 1896 ;

“ The Act of 1899 ” means the Baker Street and Waterloo Railway Act 1899 ;

“ The Act of 1900 ” means the Baker Street and Waterloo Railway Act 1900 ;

“ The Act of 1902 ” means the Baker Street and Waterloo Railway Act 1902 ;

“ The Act of 1903 ” means the Baker Street and Waterloo Railway (Extension of Time) Act 1903 :

For the purpose of the sections of the Railways Clauses Consolidation Act 1845 incorporated with this Act—

The expression “ the railway ” means the subways by this Act authorised ;

The expressions “ parish clerks ” and “ clerks of the several parishes ” in sections 7 8 and 9 of the Railways Clauses Consolidation Act 1845 mean the town clerks of the metropolitan boroughs in which the lands affected are respectively situate ;

The expression “ the council ” means the London County Council.

Power to

make works.

4. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the subways for foot passengers hereinafter described with all necessary and proper buildings passages approaches shafts inclines staircases appliances

works and conveniences connected therewith or incidental thereto and may subject as aforesaid enter upon take and use such of the lands delineated on the said plans and described in the deposited book of reference as may be required for those purposes (viz.):—

A.D. 1905.
—

Subway No. 1 Wholly in the parish of Saint Martin-in-the Fields in the city of Westminster commencing on the south side of Charing Cross at a point beneath the kerb of the foot pavement opposite to the Phoenix Fire Office and terminating under the foot pavement of Trafalgar Square at a point ten yards or thereabouts measured in an easterly direction from the south-eastern corner of the base of the Nelson Monument:

Subway No. 2 Wholly in the parish of Saint Martin-in-the Fields in the city of Westminster commencing at the termination of Subway No. 1 hereinbefore described and terminating underneath the kerb of the pavement of Trafalgar Square at a point about thirty yards measured in an easterly direction from the south-eastern corner of the base of the Nelson Monument:

Subway No. 3 Wholly in the parish and metropolitan borough of Saint Marylebone commencing underneath the foot pavement of Harewood Avenue at a point thirty-two yards measured in a northerly direction from the intersection of the centre lines of Harewood Place and Harewood Avenue and terminating at the eastern side of the foot pavement of Harewood Avenue at a point forty-seven yards or thereabouts northward of the junction of the main carriage approach to the Great Central Railway Station with Harewood Avenue:

Subway No. 4 Near the Elephant and Castle Station of the City and South London Railway Company (to connect that station with the intended station of the Company now in course of construction under London Road) commencing in the parish of Saint George the Martyr Southwark in the metropolitan borough of Southwark at a point under London Road three chains or thereabouts measured in a north-westerly direction from the north-western corner of the Elephant and Castle public-house and terminating in the parish of Saint Mary Newington in the said metropolitan borough under the New Kent Road or the roadway

A.D. 1905.

of Newington Causeway about one chain measured in a northerly direction from the same corner of the Elephant and Castle public-house :

And in connection with the said Subways No. 1 No. 2 and No. 3 the Company may construct and maintain entrances steps inclines and other approaches or conveniences connecting the said subways respectively with the surface of the pavements or carriageways adjoining the same.

Limiting
powers of
opening
streets.

5. Subject to the provisions of this Act the Company may for the purpose of constructing the Subways Nos. 1 2 and 3 and the entrances and works connected therewith respectively enter upon the surface of the street or roadway known as Charing Cross or Trafalgar Square in the city of Westminster and the street known as Harewood Avenue in the metropolitan borough of Saint Marylebone and may open break up and interfere with the surface of the said streets within the limits of deviation shown on the deposited plans but save as aforesaid (and except for the purpose of altering or diverting sewers pipes cables wires and other works) nothing in this Act contained shall empower the Company to break up or interfere with the surface of any street :

Provided that the Company shall not alter divert or otherwise interfere with any pipes cables wires or other works of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

The entrances to Subways Nos. 1 and 2 shall be constructed in accordance with the plan signed in duplicate by the Right Honourable the Earl of Lauderdale the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (of which one copy has been deposited in the Parliament Office of the House of Lords and the other copy has been deposited in the Private Bill Office of the House of Commons) with such modifications in detail (if any) as the Commissioners of Works may in writing approve.

Subsoil
under streets.

6. The Company may enter upon take and use so much of the subsoil and under surface of any public street road or footway shown on the deposited plans and described in the deposited book of reference as shall be necessary for the purposes of the works by this Act authorised without being required to purchase the same or any easement therein or thereunder.

7. Nothing in this Act shall authorise the Company to enter upon take or use (except by agreement) any cellar or vault or other part of the structure of a building in or under any street belonging to or connected with any building unless such cellar or vault or part of the structure of a building or the building with which it is connected or of which it forms part is described or referred to in the deposited book of reference.

A.D. 1905.
Provision as to cellars under streets not referenced.

8. In constructing the subways by this Act authorised it shall be lawful for the Company subject to the provisions of this Act to deviate vertically from the levels thereof as marked on the deposited sections downwards to such an extent as may be found necessary or convenient.

Power of deviation.

9. The provisions contained in section 82 of the Act of 1893 for the protection of water gas hydraulic power and electric companies shall extend and apply to the works authorised by this Act as if the same had been re-enacted in this Act with reference thereto and for the purpose of the said section the Metropolitan Water Board and the council of the metropolitan borough of Saint Marylebone respectively shall be deemed to be a "protected company" within the meaning of the said section.

Extending general provisions for protection of water gas hydraulic power and electric companies.

10. The provisions contained in section 69 of the Act of 1893 (For the protection of the Gas Light and Coke Company) shall extend and apply to the works by this Act authorised as if the same had been re-enacted in this Act with reference thereto.

For protection of Gas Light and Coke Company.

11. The provisions contained in section 25 of the Act of 1899 (For protection of South Metropolitan Gas Company) shall extend and apply to the works by this Act authorised as if the same had been re-enacted in this Act with reference thereto.

For protection of South Metropolitan Gas Company.

12. Notwithstanding anything contained in this Act the section of the Act of 1893 of which the marginal note is "For the protection of the sewers of the Council" (section 51) the section of the Act of 1902 of which the marginal note is "As to unsightly hoardings" (section 13) the section of the Baker Street and Waterloo Railway Act 1903 of which the marginal note is "Objects of interest to be at disposal of London County Council" (section 15) and the section of the Baker Street and Waterloo Railway Act 1904 of which the marginal note is "For protection of London County Council's tramways" (section 19)

Application of certain sections of Company's Acts.

A.D. 1905. are incorporated with and form part of this Act and shall extend and apply to the lands which the Company are by this Act authorised to acquire and to any works matters or things by this Act authorised and the roads under and along which the same are to be made as fully and effectually to all intents and purposes as if those sections had been repeated and expressly re-enacted in this Act with reference thereto and in such sections the expression "the council" shall be deemed to mean the London County Council and the expression "the county" shall be deemed to mean the administrative county of London.

Construction
of subways
for pipes
wires &c.

13. The Company shall in connection with the construction of the Subway No. 1 by this Act authorised and the works connected therewith construct in accordance with plans sections and specifications previously submitted to and reasonably approved by the chief engineer of the council two cross subways for the reception diversion or other accommodation of mains pipes and wires :

Provided always that one of the said cross subways for mains pipes and wires shall be so constructed and situated as to be capable of forming a satisfactory continuation of the existing subway of the council in Northumberland Avenue.

The provisions of the London County Council (Subways) Act 1893 and all byelaws now in force or hereafter to be made thereunder shall extend and apply to the cross subways for mains pipes and wires constructed under the provisions of this section.

Control of
subways for
foot traffic.

14. The authority having the control and management of the adjoining streets shall have and may exercise full powers of control over and management of the Subways Nos. 1 and 2 by this Act authorised and the Company shall provide and maintain in those subways such lights and stairs as that authority may reasonably require and shall keep those subways open for public use or temporarily close the same at such times as the said authority may reasonably direct.

The said subways shall be paved cleansed maintained and repaired to the reasonable satisfaction of the said authority but at the sole expense of the Company.

The Company shall permit all persons to use without payment of any toll or charge the said subways at all times at which the same shall be open for public use.

15. Any subway or other work by this Act authorised which will be within twenty-five feet of the surface of any street road or open space shall be constructed only in accordance with plans sections and specifications previously submitted to and approved by the chief engineer of the council and subject to such conditions and requirements as the council may reasonably impose.

A.D. 1905.

As to works
near surface
of streets.

16. Whereas it is intended that Subway No. 3 by this Act authorised shall be constructed for the purpose of carrying into effect the provisions of subsection (1) of section 35 of the Act of 1900 Therefore notwithstanding anything contained in this Act or shown upon the deposited plans the following provisions shall unless otherwise agreed in writing between the Company and the Great Central Railway Company apply and have effect for the protection of the Great Central Railway Company (that is to say):—

For protec-
tion of Great
Central Rail-
way Com-
pany.

(1) Subway No. 3 and the approaches thereto upon the respective stations of the Company and the Great Central Railway Company shall be constructed in accordance with the plan and section signed in duplicate by the Right Honourable the Earl of Lauderdale the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (of which one copy has been deposited in the Parliament Office of the House of Lords and the other copy has been deposited in the Private Bill Office of the House of Commons) and in this section referred to as "the signed plan" and shall be so constructed and maintained by the Company to the reasonable satisfaction of the principal engineer for the time being of the Great Central Railway Company and the Great Central Railway Company shall as far as practicable afford every reasonable facility for the construction of the said subway so far as the same shall be on their lands :

(2) The Company shall not in constructing Subway No. 3 at any one time open up or obstruct more than one half of the width of the footway and roadway of Harewood Avenue :

(3) With respect to any land of the Great Central Railway Company which the Company are by this Act authorised to use enter upon or interfere with the Company shall not purchase or take the same but the

A.D. 1905.

Company may purchase and take and the Great Central Railway Company may and shall grant accordingly an easement or right of using the same for the purposes for which but for this enactment the Company might purchase and take the same:

- (4) The Great Central Railway Company shall during the construction of Subway No. 3 have the right to appoint an inspector who shall at all times have full liberty to watch and inspect the works thereof for the purpose of seeing and ascertaining that the same are being carried out in accordance with the signed plan and for preventing as far as may be all danger and accidents from the operations or from the acts or defaults of the Company or their contractors with reference thereto and the reasonable costs of such inspection by the Great Central Railway Company shall be paid to that company by the Company:
- (5) If by reason of the execution of any of the works for Subway No. 3 or any proceedings of the Company or the failure of any such works or any act or omission of the Company or of their contractors or of any person in the employ of the Company or of their contractors or otherwise the railway lands or works of the Great Central Railway Company shall be injured or damaged such injury or damage shall be forthwith made good by the Company at their own expense or in the event of their failing so to do then the Great Central Railway Company may make good the same and recover the expense thereof against the Company and if any interruption shall be occasioned to the traffic of or upon any such railway or other work of the Great Central Railway Company by reason of any of the matters or causes aforesaid the Company shall pay to the Great Central Railway Company all costs and expenses to which that company may be put as well as full compensation:
- (6) The expense of lighting and ventilating Subway No. 3 shall be borne by the Company and the Great Central Railway Company in such proportions as shall be agreed upon or failing agreement as shall be determined by an arbitrator as hereinafter provided:

[5 EDW. 7.] *Baker Street and Waterloo Railway* [Ch. clxviii.]
Act, 1905.

- (7) If any difference shall arise between the Company and the Great Central Railway Company or their respective engineers as to the true intent and meaning of this enactment or the mode of giving effect thereto or any matter arising thereout such difference shall be referred to and determined by an engineer to be mutually nominated by the Company and the Great Central Railway Company or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party. A.D. 1905.

17. For the protection of the council of the metropolitan borough of Saint Marylebone (in this section called "the council") the following provisions shall unless otherwise agreed apply and have effect (that is to say):—

For protec-
tion of Saint
Marylebone
Borough
Council.

- (1) Notwithstanding anything contained in this Act or shown or indicated on the deposited plans and sections the Company shall not construct Subway No. 3 by this Act authorised (in this section called "the subway") and the consequent alteration of the sewer of the council laid in Harewood Avenue otherwise than according to the plan and sectional drawings signed in duplicate by the Right Honourable the Earl of Lauderdale the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (of which one copy has been deposited in the Parliament Office of the House of Lords and the other copy has been deposited in the Private Bill Office of the House of Commons) which plan and sectional drawings are in this section referred to as "the signed plan and sections":
- (2) When constructing the subway and consequent alteration of the said sewer the Company shall construct in such position and of such dimensions as are shown upon the signed plan and sections two manholes in the line of the existing sewer under the roadway of Harewood Avenue one on each side of the subway with suitable ventilating covers for the purpose of giving the council their officers and servants access to the junctions to the sewer as altered under the provisions of this section and in carrying out the works affecting the said sewer the Company shall not stop or interrupt the flow of

A.D. 1905.

sewage and water along the sewer The Company shall pave the roadway for a space six feet round each manhole with hard wood paving :

- (3) The Company shall give to the council fourteen days' notice in writing of their intention to commence the alteration of the said sewer and the construction of the said manholes and shall carry out such alteration of the sewer and construction of the said manholes under the supervision and to the reasonable satisfaction both as to construction and materials of the borough surveyor to whom the Company shall pay all his reasonable fees costs and expenses in connection with such supervision :
- (4) The portions of the said sewer as altered and the two manholes shall from and after the completion thereof be vested by virtue of this Act in the council and be under their jurisdiction and control in all respects :
- (5) The Company shall indemnify the council against and make good to them all damages costs and expenses which the council may at any time be liable for or incur or be put to by reason of any defect or insufficiency of strength in the subway and reconstructed portion of sewer or any neglect or failure on the part of the Company to comply with any of the provisions of this section :
- (6) It shall not be lawful for the Company to remove any soil or material from under the roadway or footways of Harewood Avenue except such as is necessary in the construction of the subway and works connected therewith :
- (7) The Company shall not at one and the same time break open and disturb a greater width than one half of the surface of the roadway and footways of Harewood Avenue and they shall with all practical speed complete the works on account of which they opened or disturbed the street and fill in the ground and make good the surface of the roadway to the reasonable satisfaction of the borough surveyor and also to the like satisfaction restore any kerbing foot pavement or channel interfered with and they shall in the mean-

time cause the place where the roadway or footway is opened to be fenced and watched and to be properly lighted at night and they shall keep the concrete foundations and surface of the said portions of roadway and footways so opened or disturbed including the covers of the manholes and the said hard wood paving round the same in reasonable repair for a period of one year after the completion of the works in this section mentioned :

A.D. 1905.
—

(8) If the Company fail to keep in reasonable repair the said concrete foundations and surface of the said portions of roadway and footways so interfered with or disturbed for the said period the council if they think fit may themselves at any time on seven days' notice to the Company do the necessary work and the expense incurred by them in so doing shall be repaid to them by the Company :

(9) If any difference shall arise between the council or the borough surveyor and the Company with respect to any matter under this section or concerning the signed plan and sections or any detailed or other plans sections drawings and specifications to be delivered by the Company to the council such difference shall be determined by an arbitrator to be appointed by the President of the Institution of Civil Engineers on the application of either party.

18. For the protection of the City and South London Railway Company (hereinafter called "the City Company") the following provisions shall unless otherwise agreed between the Company and the City Company be observed and have effect (that is to say):—

For protection of City and South London Railway Company.

(1) The Company shall one calendar month before they commence the construction of Subway No. 4 by this Act authorised furnish to the City Company proper and sufficient plans sections and specifications of the said subway and such plans sections and specifications shall be settled and agreed upon between the respective engineers of the Company and the City Company and in case of any difference arising between them the same shall be determined by an engineer to be appointed on the application of either party by the

A.D. 1905.

President of the Institution of Civil Engineers and the said subway shall be constructed only in accordance with such agreement or determination and under the superintendence and to the reasonable satisfaction of the City Company :

- (2) The Company shall construct the said subway so as (except for the necessary openings therefrom on to the platforms of the City Company) to leave undisturbed at all times the railway and works of the City Company :
- (3) If during and by reason of the construction of the said subway the City Company's railway or works connected therewith or any of the property of the City Company shall be injured or damaged such injury or damage shall be forthwith made good by the Company at their own expense or in the event of their failing so to do the City Company may make good the same and the Company shall repay to them the amount reasonably expended in so doing :
- (4) The Company shall not in making and maintaining the said subway in any manner obstruct hinder or interfere with the free uninterrupted and safe user of the City Company's railway or any traffic thereon :
- (5) During the construction of the said subway the Company shall bear and on demand pay to the City Company the expense of the employment by them of a reasonable and sufficient number of inspectors and watchmen to be appointed by them for watching the City Company's railway and works for preventing as far as may be all interference danger and accident from any of the operations of the Company or from the acts or defaults of their contractors or of any person or persons in their employ :
- (6) Notwithstanding anything in this Act contained the Company shall be responsible for and make good to the City Company all costs charges losses damages and expenses which may be occasioned to the City Company's railway or to any person or persons using their railway by reason of the construction or failure of the said subway and the works in connection therewith or of any act or omission of the Company or of

any of the persons in their employ or of their contractors and others and the Company shall effectually indemnify and hold harmless the City Company from all claims and demands upon or against them by reason of such construction or failure or of any such omission : A.D. 1905.

- (7) If any difference shall arise between the Company and the City Company as to any matter or thing comprised in or arising out of the provisions of this section the same shall be determined by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers.

19. And whereas in the construction of the works hereby authorised or otherwise in exercise of the powers of this Act it may happen that portions only of houses or buildings shown on the deposited plans may be sufficient for the purposes of the works and that such portions may be severed from the remainder of the said properties without material detrimental thereto Therefore notwithstanding section 92 of the Lands Clauses Consolidation Act 1845 the owners of and other persons interested in the houses or buildings described in the First Schedule to this Act and whereof parts only are required for the purposes of this Act may if such portions can in the opinion of the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Company the portions only of the house or building so required without the Company being obliged or compellable to purchase the whole or any greater portion thereof the Company paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise. Owners may be required to sell parts only of certain lands and buildings.

20. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

21. If the works are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Period for completion of works.

A.D. 1905.

Abandon-
ment of cer-
tain subway
works.

22.—(1) The Company may and shall abandon the construction of the subway for foot passengers (No. 2) authorised by the Act of 1899 as shown on the deposited plans referred to in the said Act and as altered pursuant to the said section 43 except so much thereof as is situate between the post office at the western end of West Strand and a point on the foot pavement of Trafalgar Square near the Havelock Statue.

The Company may and shall abandon the construction of Subway No. 2 as described in and authorised by the Act of 1900.

Compensa-
tion for da-
mage to land
by entry &c.
for purposes
of works
abandoned.

(2) The abandonment by the Company under the authority of this Act of any portion of any works shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Company on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out the line of the works and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Company to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation Act 1845 or the Acts of 1899 and 1900.

Compensa-
tion to be
made in re-
spect of
works aban-
doned.

(3) Where before the passing of this Act any contract has been entered into or notice given by the Company for the purchasing of any land for the purposes of or in relation to any portions of the works authorised to be abandoned by this Act the Company shall be released from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall be made by the Company to the owners and occupiers or other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation paid for lands taken under the provisions thereof.

Repayment
of deposit
money.

23. Whereas pursuant to the standing orders of both Houses of Parliament and the Parliamentary Deposits Act 1846 a sum of nine hundred and ninety-three pounds ten shillings two and

three quarters per cent. consolidated stock (now two and a half per cent. consolidated stock) was deposited with the Paymaster-General for and on behalf of the Supreme Court in respect of the application to Parliament for powers to make the Subway No. 2 authorised by the Act of 1899: A.D. 1905.

And whereas pursuant to the said standing orders and the said Act of 1846 a sum of forty-seven thousand two hundred and fifty pounds cash was deposited with the Paymaster-General for and on behalf of the Supreme Court in respect of the application for the Act of 1900:

And whereas the said sum of cash was invested in forty-eight thousand five hundred and twenty-five pounds seven shillings and eightpence two and three quarters per cent. consolidated stock (now two and a half per cent. consolidated stock) of which four hundred and sixty-two pounds represents the portion attributable to the Subway No. 2 authorised by the Act of 1900 and by this Act authorised to be abandoned:

Be it enacted that subject to the provisions of this Act and of section 16 of the Act of 1899 and section 15 of the Act of 1900 with respect to compensation to landowners or other persons injured and for the protection of creditors the High Court may and shall at any time after the passing of this Act on application by or on behalf of the depositors mentioned or referred to in section 15 of the Act of 1899 or section 14 of the Act of 1900 as the case may require or the survivors or survivor of them or the executors or administrators of such survivor or by or on behalf of any other persons or person entitled to the deposit funds respectively referred to in the Acts of 1899 and 1900 order that—

(a) The said sum of nine hundred and ninety-three pounds ten shillings two and a half per cent. consolidated stock;

(b) The said sum of four hundred and sixty-two pounds two and a half per cent. consolidated stock;

and the interest or dividends then due on the said respective portions of the said sums be transferred and paid to the said respective depositors or any other persons or person entitled thereto or to any persons or person whom they or he may appoint in that behalf and upon such order being made the said respective sums so authorised to be paid out and the interest or

A.D. 1905. dividends thereon shall be transferred and paid to such persons or person accordingly.

Repeal of part of section 43 of Act of 1899. **24.** Subsection (5) of section 43 (For protection of vestry of Saint Martin-in-the-Fields) of the Act of 1899 is hereby repealed.

Extension of time for completion of works authorised by Acts of 1893 1896 and 1899. **25.** The time limited by section 5 of the Act of 1902 for the completion of the railways subways and other works authorised by the Act of 1893 the Act of 1896 and the Act of 1899 (except such parts of those railways subways and other works as have been or are by this Act authorised to be abandoned) is hereby extended until the first day of August one thousand nine hundred and eight and sections 85 86 and 87 of the Act of 1893 sections 16 17 and 18 of the Act of 1896 sections 15 16 and 18 of the Act of 1899 and sections 5 and 6 of the Act of 1902 shall be read and have effect accordingly.

Extending time for purchase of lands under Act of 1900. **26.** The time limited by section 3 of the Act of 1903 for the compulsory purchase for the purposes of the Act of 1900 of the lands referred to in the Second Schedule to this Act is hereby further extended until the sixth day of August one thousand nine hundred and eight and section 12 of the Act of 1900 and section 3 of the Act of 1903 shall be read and have effect accordingly.

Saving rights of Crown. **27.** Nothing in this Act shall affect prejudicially any estate right power privilege or exemption of the King's most Excellent Majesty and in particular nothing contained herein shall authorise the Company to take use or in any manner interfere with any land or hereditaments (including the subsoil and undersurface of any street road or footway) or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods without the consent in writing of the Commissioners of Woods on behalf of His Majesty first had and obtained for that purpose which consent such Commissioners are hereby authorised to give.

For protection of Commissioners of Works. **28.** Nothing contained in this Act shall authorise the Company to take use or in any manner interfere with any land soil roads subsoil tenements or hereditaments or any rights of whatsoever nature belonging to or enjoyed or exerciseable by the King's most Excellent Majesty in right of His Crown and under the management or control or direction of the Commissioners of

Works without the consent in writing of the said Commissioners on behalf of His Majesty first had and obtained for that purpose or to take use or in any manner interfere with any land soil roads subsoil tenements or hereditaments vested for any estate or interest in or in the occupation of or any right of whatsoever nature belonging to or enjoyed or exerciseable by the said Commissioners under or by virtue of the provisions of any Act of Parliament or otherwise without the consent in writing of the said Commissioners first had and obtained for that purpose which consent for all the purposes of this section the Commissioners are hereby authorised to give under and subject to such conditions as they may think fit to prescribe.

A.D. 1905.

29. The Company may apply for or towards the purposes of this Act to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by their existing Acts and which are not required for the purposes to which they are by those Acts respectively made specially applicable.

Power to
apply funds.

30. The Company may with respect to the whole or any portion of debenture stock created or to be created by them and subject to such regulations as may from time to time be made by the Company issue under their common seal a certificate (hereinafter referred to as "a debenture stock certificate to bearer") stating that the bearer of the certificate is entitled to the portion of debenture stock therein specified and may provide by coupons whether attached to such certificate or not for the payment of interest on the portion of stock included in the certificate :

Power to
issue debenture stock
certificates
to bearer.

Provided always that nothing in this Act contained shall empower the Company to issue to a registered holder of debenture stock issued prior to the passing of this Act a debenture stock certificate to bearer for the debenture stock last aforesaid held by him without first obtaining his consent in writing.

Section 29 of the Companies Clauses Act 1863 shall not apply to a debenture stock certificate to bearer.

31. A debenture stock certificate to bearer shall entitle the bearer thereof to the portion of debenture stock therein specified and such portion may be transferred by delivery of the certificate.

Effect of debenture stock
certificate.

A.D. 1905.

Entries in
register on
issue of de-
benture stock
certificate.

32. On the issue of a debenture stock certificate to bearer in respect of any portion of debenture stock the Company instead of making in the register of debenture stock holders with reference to such portion of debenture stock the entries provided for by section 28 of the Companies Clauses Act 1863 shall strike out of such register the name of the person (if any) then entered therein as holding such portion of debenture stock and shall enter in the register the following particulars :—

- (i) The fact of the issue of the certificate :
- (ii) A statement of the amount of the portion of debenture stock included in the certificate :
- (iii) The date of the issue of the certificate.

Registration
of debenture
stock on sur-
render of
certificate.

33. The bearer of a debenture stock certificate to bearer shall—

- (A) On surrendering such certificate with all coupons issued in respect thereof and for the time being outstanding for cancellation ;
- (B) Complying with such regulations as may from time to time be made by the Company for the purpose of enabling the Company to ascertain the name address and description of such bearer and for obtaining a specimen of his signature ;
- (C) Paying to the Company all stamp or other Government duties (if any) which may be payable by the Company in consequence of such surrender ;
- (D) Paying to the Company such fee not exceeding five shillings as the Company may prescribe ;

be entitled to have his name entered in the register of debenture stock holders and the Company shall be responsible for any loss incurred by any person by reason of the Company entering in that register the name of any bearer of a debenture stock certificate to bearer in respect of the portion of stock therein specified without the certificate and such coupons as aforesaid being surrendered and cancelled.

Provision in
case of appli-
cations to
Parliament
affecting
rights of
holders of

34. If and so often as any application shall be made to Parliament for an Act affecting the rights of the holders of any class of debenture stock which shall for the time being have been issued by the Company and be outstanding and in respect whereof or any part whereof debenture stock certificates to

bearer shall be then outstanding the following provisions shall have effect (that is to say):—

A.D. 1905.

debenture
stock.

- (1) In this section the following expressions shall have the following meanings unless repugnant to the context:—

“The debenture stock” means the debenture stock of such class as last aforesaid for the time being issued and outstanding;

“The bearer of debenture stock” means such of the debenture stock as shall for the time being be comprised in debenture stock certificates to bearer;

“Bearer certificates” means the debenture stock certificates to bearer for the time being issued in respect of the debenture stock or any part thereof and outstanding;

“The bearers” means the bearers for the time being of the bearer certificates and “bearer” means one of the bearers;

“Registered holders” means the registered holders for the time being of any of the debenture stock;

“Meeting” means a meeting of the registered holders and the bearers under this section;

“Voting certificate” means a voting certificate issued in pursuance of this section:

- (2) Any meeting convened for the purpose of approving any such application to Parliament as aforesaid or any Bill for such Act as aforesaid shall so far as the bearers are concerned be duly convened by advertising the notice convening the same once in two newspapers published in London and once in the same two newspapers in the next week following the publication of the first advertisement. Provided the same shall be convened for a date not less than twenty-one days or more than forty days after the last insertion of the advertisement thereof in such two newspapers. It shall also be lawful for but not obligatory on the Company to advertise such notice as last aforesaid in any other newspaper or newspapers either in the United

A.D. 1905.
—

Kingdom or abroad Every such advertisement as aforesaid shall state the name and address of a bank in London and if the Company think fit so to do but not otherwise of any other bank or banks either in the United Kingdom or abroad at which the bearers may not less than forty-eight hours before the time for holding the meeting or any adjournment thereof deposit their bearer certificates and obtain voting certificates in respect thereof:

- (3) At a meeting or any adjournment thereof the bearer of a bearer certificate shall be treated as the legal holder thereof whether such bearer shall or shall not be the owner thereof and for all the purposes of the meeting or any adjournment thereof the bearer of a voting certificate issued under this section in respect of a bearer certificate shall be deemed to be the bearer of such bearer certificate:
- (4) Prior to convening a meeting the Company shall make such arrangements as will entitle any bearer who shall not less than forty-eight hours before the time for holding such meeting or any adjournment thereof deposit a bearer certificate in the bank or one of the banks to be named for that purpose in the notice convening the meeting to receive from the bank with whom such deposit is made (a) a receipt for the bearer certificate so deposited such receipt to be in such form as (subject to the provisions of the next succeeding subsection) will entitle the bearer thereof to have the bearer certificate in respect of which the same was given delivered to him in exchange therefor by the bank with whom such bearer certificate was deposited whether such bearer be or be not in fact the true owner of such bearer certificate and (b) a voting certificate which receipt and voting certificate shall be signed by some official of such bank and shall specify the denoting number of the bearer certificate so deposited and the amount of the debenture stock comprised therein A voting certificate shall not except as provided by subsection (3) of this section confer any title on the holder thereof to the bearer certificate or to the debenture stock referred to therein:

- (5) A bearer certificate deposited as last aforesaid shall be deposited subject to (amongst others) the condition that the same shall be retained by the bank with which the same is so deposited until the meeting has been held or abandoned or until the receipt given by such bank therefor and the voting certificate issued by such bank in respect thereof shall be delivered to such bank whichever shall be the earlier. A.D. 1905. —

35. If a debenture stock certificate to bearer or coupon is lost or destroyed then upon— Loss or destruction of debenture stock certificate to bearer or coupon.

- (a) Proof to the satisfaction of the directors of the ownership of such lost or destroyed certificate or coupon and of the loss or destruction thereof ;
 (b) Such indemnity to the Company and the directors as the directors deem adequate being given ;
 (c) Payment of all stamp and other Government duties (if any) payable in respect of the new certificate or coupon together with a fee of five shillings ;

a new debenture stock certificate to bearer or coupon as the case may be in lieu of the certificate or coupon so lost or destroyed shall be issued by the Company and a due entry of the issue of such new debenture stock certificate to bearer or coupon shall be made by the secretary in the register of debenture stock holders.

36. A trustee unless authorised by the terms of his trust shall not apply for or hold a debenture stock certificate to bearer issued under the authority of this Act but nothing in this section shall impose on the Company or any person authorised to issue any such debenture stock certificate to bearer any obligation to inquire whether the person applying for a debenture stock certificate to bearer is or is not a trustee or subject them to any liability in the event of their issuing a debenture stock certificate to bearer to a trustee nor invalidate a debenture stock certificate to bearer if issued to a trustee. Trustees unless expressly authorised not empowered to hold debenture stock certificates to bearer.

37. A copy of the sections of this Act of which the marginal notes are "Registration of debenture stock on surrender of certificate" "Provision in case of applications to Parliament affecting rights of holders of debenture stock" and "Trustees unless expressly authorised not empowered to hold debenture Endorsement of provisions on debenture stock certificates to bearer.

A.D. 1905. stock certificates to bearer" shall be endorsed on every debenture stock certificate to bearer which shall be issued by the Company in addition to the declaration required by section 14 of the Railway Companies Securities Act 1866.

Application
of certain
provisions of
Companies
Act 1867.

38. Any person who shall commit in relation to a debenture stock certificate to bearer or coupon or voting certificate issued or purporting to be issued in pursuance of this Act any of the offences which are specified in sections 34 to 36 of the Companies Act 1867 in relation to share warrants issued in pursuance of that Act shall be liable to the penalties imposed by those sections as if he had committed the offence or offences in relation to a share warrant issued in pursuance of that Act.

Extending
power to pay
interest out
of capital.

39. The periods during which the Company may pay interest out of capital under the provisions of section 38 of the Act of 1896 section 46 of the Act of 1899 and section 45 of the Act of 1900 are hereby respectively extended until the twenty-third day of July one thousand nine hundred and nine and the said sections respectively shall be read and have effect accordingly.

Provision as
to general
Railway
Acts.

40. Nothing in this Act contained shall exempt the Company or their railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised by the Acts relating to the Company.

Costs of Act.

41. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the foregoing Act. A.D. 1905.

THE FIRST SCHEDULE.

DESCRIBING HOUSES OR OTHER BUILDINGS OR MANUFACTORIES
OF WHICH PORTIONS ONLY MAY BE TAKEN.

Metropolitan Borough.	Nos. on deposited Plans.
City of Westminster - - - -	2 3 4 5 6 7 and 8.
Metropolitan borough of Saint Marylebone -	1.
Metropolitan borough of Southwark - -	4.

THE SECOND SCHEDULE.

DESCRIBING LANDS AUTHORISED TO BE TAKEN COMPULSORILY UNDER
THE POWERS OF THE ACT OF 1900 AS EXTENDED UNDER THE
ACT OF 1903 THE TIME FOR TAKING WHICH IS EXTENDED BY
SECTION 26 OF THIS ACT.

Title of Act authorising the Purchase of Land.	Title of Work.	Area.	Nos. on deposited Plans referred to in Act of 1900.
Act of 1900	Railway No. 1	Parish of Saint Marylebone - Parish of Paddington - -	2 14 15 20 22 27. 15 16 17 17a 17b 18 to 31.
" "	Subway No. 1	Do. do. - -	16 20 21 22 29 30 31 32.
" "	Railway No. 2	Parish of Saint Mary Lambeth	1 13.
" "	Railway No. 3	Do. do. -	13.
		Parish of Saint George-the- Martyr Southwark.	1 2 3 16 17.
		Parish of Saint Mary New- ington.	1 2 3.
" "	Railway No. 4	Parish of Saint Mary Lambeth	13.
		Parish of Saint George-the- Martyr Southwark.	1 18 19.

Printed by EYRE and SPOTTISWOODE,
FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or
OLIVER AND BOYD, EDINBURGH; or
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.